

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

TEDDY SZETO,

Respondent

) Case Number: FCS-19-353681

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Sheryl Yang (Mother) and Teddy Szeto (Father) have one minor child together, Grace (DOB 10/8/14, age 11).
- 2) On 5/18/2023, the parties agreed to share legal custody and for Father to have supervised visits through Rally Family Visitation Services (Rally). After several review hearings, the Court found on 5/30/2024 that Father had regularly and consistently visited Grace and that unsupervised visits was in Grace's best interests.
- 3) In a Findings and Order After Hearing (FOAH) filed 2/2/2026, the Court maintained Father's parenting time schedule of Tuesdays from 2:05pm to 7:30pm (pick up at school and drop off at Mother's home, curbside) and the first Saturday of each month from 10am to 5pm (pick up and drop off at Mother's home, curbside) in lieu of the first Tuesday visit of each month. After finding that the location restrictions that had been placed on Father's visits (i.e., in a public place or the paternal grandparents' home with a grandparent present), as well as the makeup visits for Father, were creating conflict between the parties, the Court temporarily lifted the location

1 restrictions and also ordered that pending a review hearing on 4/21/2026, there shall be no
2 makeup visits for missed or canceled visits. The Court ordered that Mother may cancel Father's
3 visits only in the event Grace is too ill to the point of having to miss school. The Court ordered
4 that Father shall continue to be permitted to communicate directly with Grace via text message,
5 and that Mother shall continue to be permitted to monitor and review the text messages.

6 4) In the 2/2/2026 FOAH, the Court expressed concern that Father may still be talking to Grace
7 about matters related to the family case and about the high conflict between the parties. The Court
8 reminded Father not to talk to Grace about the family law case and other specified topics and
9 ordered the parties to enroll in and attend coparenting classes and to ensure that Grace is enrolled
10 in and attends individual therapy.

11 5) A Tier II interview of Grace was conducted, and a report of the interview has been provided to
12 the Court and to the parties. Father filed a request to continue the 4/21/2026 hearing on the
13 ground that the parties did not timely receive a copy of the Tier II report, which left them with
14 insufficient time to meet and confer regarding parenting time. The Court has reviewed the parties'
15 declarations regarding the request to continue the hearing and hereby denies the request.

16 6) On 4/8/2026, Mother filed a declaration stating she completed the "Putting Kids First" parenting
17 program on 1/13/2026 and that Grace is attending therapy despite delays caused by Father's
18 uncooperative behavior. She states the parties' communication has been minimal and appropriate
19 since they began using Civil Communicator. She describes an incident that occurred on
20 3/17/2026, 6 days after Grace's Tier II interview, in which she was distressed for over 90 minutes
21 after a visit and was unable to do her school work because Father yelled at her in front of a friend
22 for doing her homework on the bed instead of at a desk. Father threatened to take away Grace's
23 phone and told her she needed to clean the cat litter even though she had homework to do. Mother
24 asks the Court to deny Father's request for expanded parenting time and to order instead that his
25 visits must be supervised. She also seeks sole legal custody based on Father's failure to
26 meaningfully engage in joint decision making; alternatively, she asks that she be permitted to
27 make unilateral decisions when she does not hear back from Father within 7 days. Mother states
28 that she plans to move to Foster City this summer with her husband and provided Father with
29 formal relocation notice, but has not heard back from Father.

1 7) On 4/16/2026, Father filed a declaration stating he completed the "Putting Kids First" parenting
2 program on 4/1/2026 and has enrolled in—and plans to complete—the Kids' Turn program on
3 6/8/2026. He states he did not object to Mother's proposed therapist for Grace and that visits have
4 been going well since the last hearing. Father disagrees with Mother's characterization of how the
5 3/17/2026 visit went. He states he did not yell at Grace; rather, he set boundaries and told her to
6 finish her homework and take care of a responsibility she had been putting off. He states he is
7 aware of Mother's plan to move to Foster City and states he is open and willing to engage in
8 discussions with her regarding this plan.

9 **B. Findings and Orders**

- 10 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
11 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
12 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
13 child is the United States.
- 14 2) The Court finds it is in Grace's best interests to maintain the current custody and parenting time
15 schedule, with no modification at this time. Father is reminded not to talk to Grace about the
16 family law case or about Grace's sibling Pierce. The location restrictions on Father's visits remain
17 temporarily lifted, and there will also be no makeup visits for Father for any missed or canceled
18 visits. Mother may cancel Father's visits only in the event Grace is too ill to the point of having to
19 miss school. The parties shall continue to communicate only through Civil Communicator, and
20 only about the child.
- 21 3) Mother has indicated that she plans to move to Foster City this summer, in which case
22 modification of custody and parenting time may become necessary depending on the outcome of
23 any move-away request. Mother must file a move away request and obtain a Court order to move
24 with Grace, unless Father provides written consent to the move.
- 25 4) The parties shall meet and confer, through counsel, regarding any modifications to custody and
26 parenting time, including regarding Mother's plan to move to Foster City with Grace.
- 27 5) All prior Court orders not in conflict with these orders remain in full force and effect.
- 28 6) The Court will prepare the Findings and Order After Hearing.
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